



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00005 / Rocky Mountain Industrial Zone Change
Date: February 14, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/14/2022
- Public Services Committee 2/23/2022
- Second reading 2/28/2022
- Public Services Committee 3/8/2022
- Third and final reading 3/14/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their February 7, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO HI HEAVY INDUSTRIAL FOR LAND LOCATED NORTH OF CAMPSTOOL ROAD, WEST OF PROGRESS CIRCLE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on February 7, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Tracts 20-22, Rocky Mountain Industrial Park Addition Third Filing; and Lots 1-2, Block 1, Rocky Mountain Industrial Park Fifth Filing, Cheyenne, Wyoming, is hereby changed to HI Heavy Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

FEBRUARY 7, 2022

STAFF REPORT

FILE: UDC-22-00005: Rocky Mountain Industrial Park Zone Change

REQUEST: A request to rezone approximately 23.4 acres of land from CB Community Business to HI Heavy Industrial

LOCATION: North of Campstool, west of Progress Circle

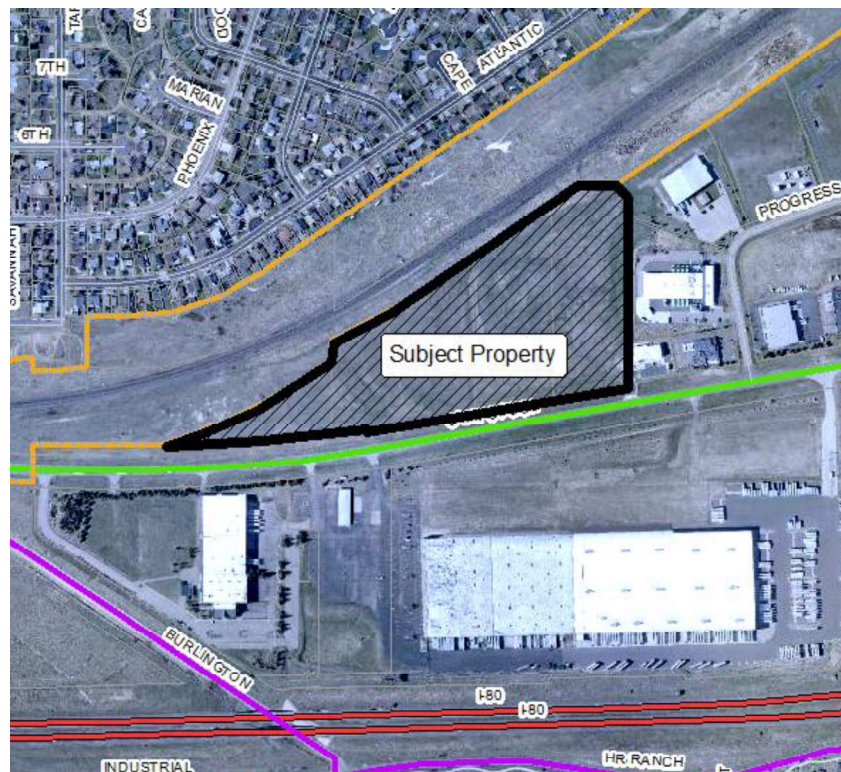
OWNER: Cheyenne Leads

ZONING: CB Community Business

FUTURE LAND USE: Industrial

PURPOSE: To allow outdoor storage use

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Tracts 20-22, Rocky Mountain Industrial Park, 3rd Filing; and Lots 1-2, Block 1, Rocky Mountain Industrial Park, 5th Filing, Cheyenne, Wyoming to HI Heavy Industrial as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from CB Community Business to HI Heavy Industrial for 23.4 acres. The land is undeveloped. The impetus behind the proposed zone change is to allow the industrial use of Outdoor Storage on at least one of the subject parcels.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Industrial	CB (Community Business)	Undeveloped
North	Urban Residential	County A-2, County HI	Undeveloped
South	Industrial	HI	Limited Industrial (warehousing)
East	Industrial	CB	Office, Limited Industrial (warehousing)
West	Urban Residential, Industrial	County HI, HI	Undeveloped

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development.

The Future Land Use Designation for this property is Industrial, and the zoning classification of HI is one of the optimal zones for areas so designated.

Policies within PlanCheyenne encourage industrial areas to be located outside of activity centers and with ready access to regional transportation routes. This area supports these objectives.

Based on the policies and future land use designation of the subject property, HI zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Nearby property to the north and west are largely undeveloped and across a railroad track. Property to the south is zoned HI and developed with a large-scale distribution facility. Property to the east is zoned CB and contains both offices and warehousing-type facilities. The development patterns in this area are compatible with the proposed HI zoning. While CB allows more commercial-style development, the CB region to the east is surrounded by HI zoning. HI zoned land is required to have buffers to areas zoned CB.

The comprehensive plan encourages industrial uses and zoning for all of the property between the railroad and I-80 in this area of the community.

The proposed zone change **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The property is currently zoned CB Community Business. CB zoning requires building design standards and is intended for regional-serving commercial and service uses. The proposed zoning of HI has no design standards and allows more intense uses which are intended to be buffered from the standard residential/commercial areas of the community. While the property has the ability to develop according to the standards of either zone district, the subject property is more likely to develop with industrial-style uses than with commercial service style uses. A HI zone is required to provide a buffer to CB zoned areas, but the parcels in question should have enough area to be able to provide the intended buffer.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The standards of Article 4 regarding block size and connections are not really applicable to industrial areas; and due to the adjacent railroad and highway, north-south options for connections are very limited. The area is already platted and no replatting actions are currently proposed with this zone change. The existing subdivision pattern better matches HI zone expectations than CB zone expectations.

The proposed zone change **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The HI zone is intended for uses of very high intensity which should be able to be isolated and buffered from other uses. This zoning is most appropriate in areas with access to major regional transportation infrastructure and areas designated Industrial in the Comprehensive Plan.

The proposed zone change **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

While HI zoning does not have design standards, other development standards are still applicable. The property zoned HI should be able to provide the required landscape buffer to the adjacent CB zoning, and certain HI uses are required to have buffers from streets. There have been no official applications submitted in concert with this zone change application, and HI zoning will allow a variety of more intense uses – should the potential development action that prompted this zone change not be executed, the HI zone is appropriate at this location.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No recommendations were received through the review process.

The proposed zone change **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received suggesting the proposed zoning was compatible with the comprehensive plan. Comments were also received noting that a buffer would be required to the adjacent CB zoned parcels.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The HI zone is appropriate based on the future land use designation for the subject property and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

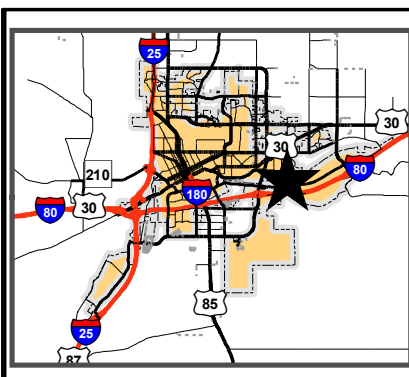
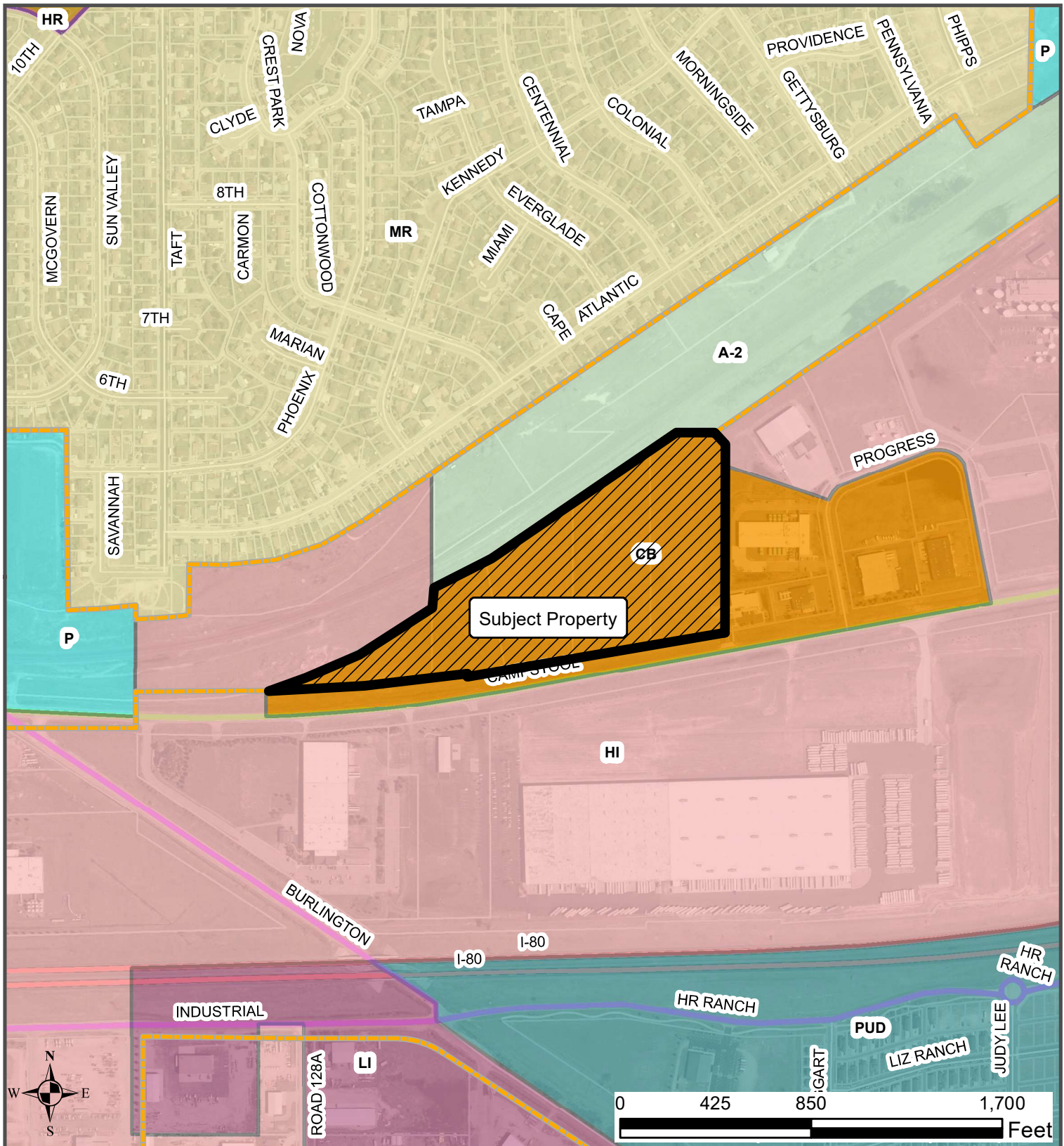
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from CB to HI.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

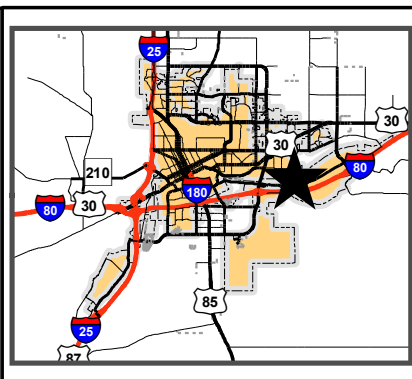
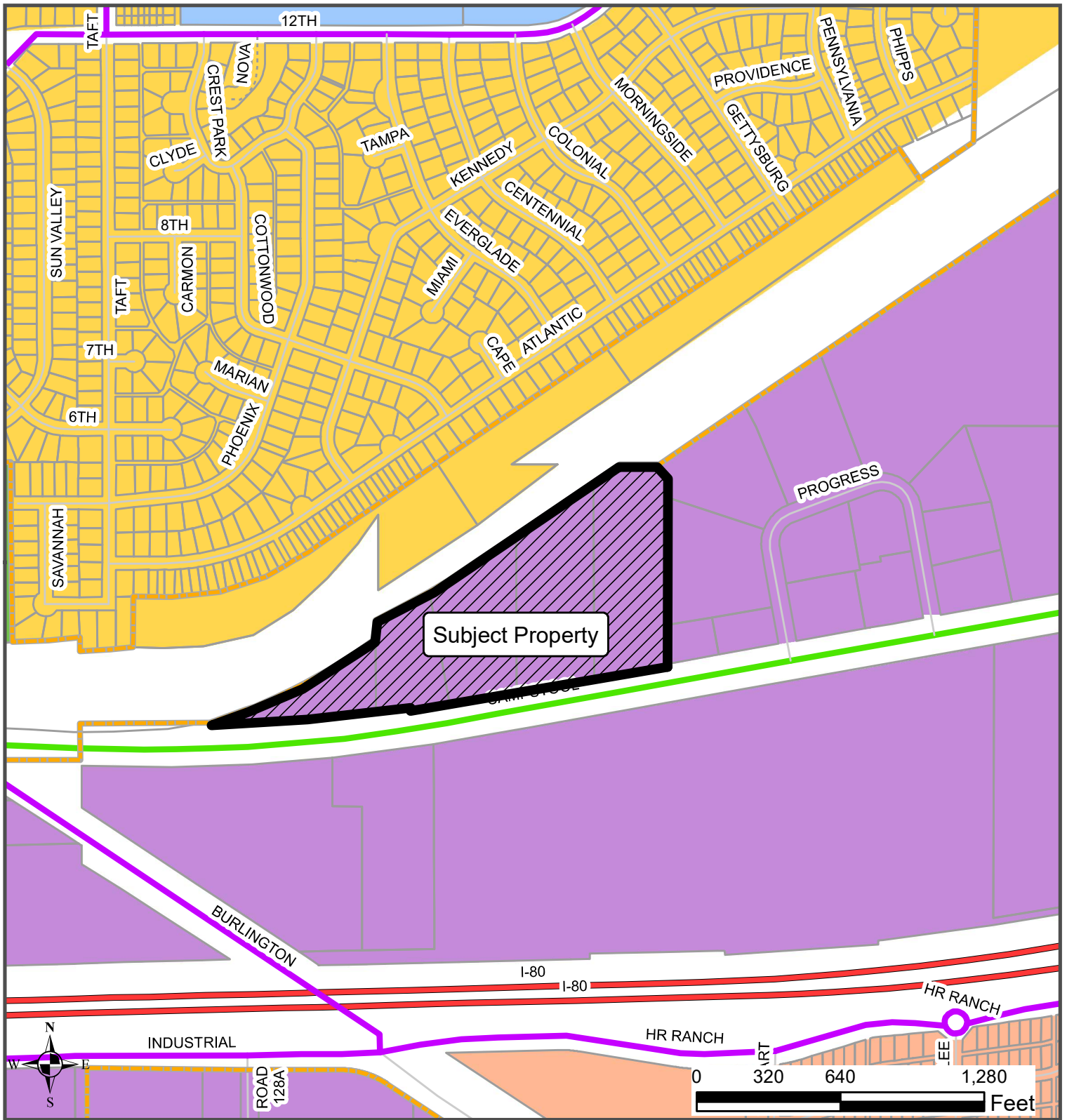


Attachment 1: Zoning Map UDC-22-00005

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-22-00005

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **5 January 2022, 4:27PM**

Receipt number: **23**

Related form version: **10**

General Information

Applicant Name: **Betsey Hale**

Applicant Address: **PO BOX 1045**

Applicant City: **CHEYENNE**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **3076386000**

Applicant Email: **BETSEYH@CHEYENNELEADS.ORG**

Representative Name: **AVI-BRAD EMMONS**

Representative Address: **1103 OLD TOWN LANE #101**

Representative City: **CHEYENNE**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **EMMONS@AVIPC.COM**

Owner Name: **BETSEY HALE**

Owner Address: **PO BOX 1045**

Owner City:	CHEYENNE
Owner State:	WY
Owner Zip Code:	82009
Owner Phone:	3076386000
Owner Email:	BETSEYH@HEYENNELEADS.ORG
Who is the primary contact regarding this application?	Representative
Letter of Authorization	leads_rkyzone_auth_001.pdf
Project Location (Street Address or General Location):	west of 5320 Campstool Road
Assessor's Parcel ID number(s)	R0001255, R0001256, R0001257, R0061200, R0061199
Total Project Area	En23.39 ac
Existing Zoning	CB - Community Business
Requested Zoning	HI - Heavy Industrial

Application-Specific Questions

Written Statement	Applicant is looking to rezone the property from CB to HI for business that are looking to have outdoor storage
Zoning Map	4593_ZONE_CHANGE.pdf
Notification Letter	rocky mountain industrial park neighbor notification_.docx neighbor notification list.pdf
Supporting Documents / Information	Rocky Mountain Industrial zone change aerial.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com

